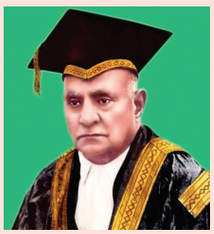
Activity

Read more about the Privy Council and have a discussion in class about its significance in the evolution of judicial administration in India.

Sir Hari Singh Gour



In 1921, Sir Hari Singh Gour was the first person in the legal history of India to realize the necessity of establishing an All-India Court of Final Appeal in place of the Privy Council.

4.4 Supreme Court of India

Uniqueness – Sources of Law – Jurisdiction and Powers – Organization

The Constitution of India provides for a three - tier judicial system:

(1). The Supreme Court of India
(2). The High Courts in the constituent States and
(3). The District and Sessions Courts in the judicial districts in every state.



The Constitution also provides for an independent judiciary i.e. independence of the Executive and the legislature. In a democratic federal polity like India. The Supreme Court assumes a much bigger note as the guardian of the Constitution, as an arbitrator in disputes between States and the Union Government and in disputes among the States, and as the highest appellate Courts in all civil and criminal cases. It is endowed with the onerous responsibility of safeguarding and enforcing the fundamental rights and freedoms of all citizens of India. However, unlike the federal system in the USA, the Constitution of India of India does not provide for two sets of judiciary (one as federal, another for States). India has only a unitary judiciary system, with the Supreme Court as the apex Court, with authority over all other Courts in India.

Activity

Newspaper Follow-Up

Follow the newspaper for one month and collect news items related to civil cases in the District and Session court, High Court and Supreme Court of our country. Write the headlines of the news in the chart. Display the chart in the notice board or present your collections in the classroom.

The Sources of Law : The Constitution is the fountain source of law in India. Statutes enacted by legislatures of the union, State or Union Territories become another source of law as long as these are in conformity the basics of the Constitution. Besides the subordinate legislations in the form of rules, regulations as well as by – laws of any administrative body, unless and until negated by the judiciary constitute the third source of law.

12th_Political Science_Unit_4.indd 72 12/6/2022 12:54:54 PM